

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JEREMIE C. XAVIER and HENRY XAVIER,

Plaintiffs,
-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JUSTIN HENDERSON – Shield # 6824
and JOHN DOES – Police Officers as yet unidentified,

Defendants.
-----X

Index #

Date of filing:

Plaintiff designates Bronx
County as the place of trial

Basis of the venue is:
Location of Occurrence

SUMMONS

Plaintiffs reside at
270 E. 162nd Street
Bronx, NY 10451
County of Bronx

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendants' address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER JUSTIN HENDERSON – Shield #
6824
Strategic Response Group 2
1278 Sedgwick Avenue
Bronx, New York 10452

POLICE OFFICER JUSTIN HENDERSON – Shield #
6824
44th Precinct
2 East 169th Street
Bronx, New York 10452

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

Dated: Brooklyn, New York
October 24, 2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JEREMIE C. XAVIER and HENRY XAVIER,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JUSTIN HENDERSON – Shield # 6824
and JOHN DOES – Police Officers as yet unidentified

Defendants.

-----X
Plaintiffs by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the

defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF JEREMIE C. XAVIER**

1. That at all times hereinafter mentioned, plaintiff were and still are residents of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a public authority duly organized and existing under and by virtue of the laws of the State of New York.
4. That prior hereto on February 2, 2017, and within the time prescribed by law, a sworn Notice of Claim was filed on behalf of plaintiff, Jeremie C. Xavier, stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on the plaintiff's behalf on the Comptroller for the

City of New York and the New York City Police Department and that thereafter said Comptroller for the City of New York and the New York City Police Department refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That prior hereto on February 2, 2017, and within the time prescribed by law, a sworn Notice of Claim was filed on behalf of plaintiff, Henry Xavier, stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on the plaintiff's behalf on the Comptroller for the City of New York and the New York City Police Department and that thereafter said Comptroller for the City of New York and the New York City Police Department refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. That on June 14, 2017, pursuant to the General Municipal Law, plaintiff's Jeremie C. Xavier's Statutory 50-H hearing was held.

7. That on June 14, 2017, pursuant to the General Municipal Law, plaintiff's Henry Xavier's Statutory 50-H hearing was held.

8. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER JUSTIN HENDERSON and JOHN DOES- Police Officers as yet unidentified, as agents, servants and/or employees.

9. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JEREMIE C. XAVIER, was lawfully at or about the premises known as Crown Diner, 79 East 161st Street, County of Bronx, City and State of New York, when he was

approached by defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES- Police Officers as yet unidentified.

10. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES-Police Officers as yet unidentified, assaulted and battered the plaintiff, JEREMIE C. XAVIER, at the abovementioned location.

11. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

12. That on January 8, 2017 and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, JEREMIE C. XAVIER, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

13. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

14. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

15. By the reason of the foregoing, the plaintiff, JEREMIE C. XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF JEREMIE C. XAVIER**

16. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "15" inclusive with the same force and effect as if more fully set forth at length herein.

17. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, JEREMIE C. XAVIER.

18. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

19. By the reason of the foregoing, the plaintiff, JEREMIE C. XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS
ON BEHALF OF JEREMIE C. XAVIER**

20. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "19" inclusive with the same force and effect as if more fully set forth at length herein.

21. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

22. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, JEREMIE C. XAVIER.

23. That as a result of said intentional and negligent acts, the plaintiff, JEREMIE C. XAVIER, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

24. By reason of the foregoing, the plaintiff, JEREMIE C. XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR FOURTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF JEREMIE C. XAVIER**

25. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "24" inclusive with the same force and effect as if more fully set forth at length herein.

26. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, were acting under the color of law and

within the scope of their authority, assaulted and battered the plaintiff, JEREMIE C. XAVIER, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

27. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, JEREMIE C. XAVIER, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

28. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

29. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

30. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

31. That the defendants' actions were not privileged or immune.

32. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON

and JOHN DOES – Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

33. By the reason of the foregoing, the plaintiff, JEREMIE C. XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN FIFTH CAUSE OF ACTION FOR PUNITIVE
DAMAGES ON BEHALF OF JEREMIE C. XAVIER**

34. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.

35. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

36. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, herein-above alleged.

37. By the reason of the foregoing, the plaintiff, JEREMIE C. XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF HENRY XAVIER**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER JUSTIN HENDERSON and JOHN DOES- Police Officers as yet unidentified, as agents, servants and/or employees.

40. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, HENRY XAVIER, was lawfully at or about the premises known as Crown Diner, 79 East 161st Street, County of Bronx, City and State of New York, when he was approached by defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES- Police Officers as yet unidentified.

41. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES- Police Officers as yet unidentified, assaulted and battered the plaintiff, HENRY XAVIER, at the abovementioned location.

42. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

43. That on January 8, 2017 and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, HENRY XAVIER, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

44. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

45. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

46. By the reason of the foregoing, the plaintiff, HENRY XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF HENRY XAVIER**

47. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "46" inclusive with the same force and effect as if more fully set forth at length herein.

48. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, HENRY XAVIER.

49. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police

Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

50. By the reason of the foregoing, the plaintiff, HENRY XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF HENRY XAVIER**

51. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "50" inclusive with the same force and effect as if more fully set forth at length herein.

52. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, HENRY XAVIER.

53. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

54. That as a result of the aforesaid false arrest and confinement, plaintiff, HENRY XAVIER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

55. By the reason of the foregoing, the plaintiff, HENRY XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF HENRY XAVIER**

56. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "55" inclusive with the same force and effect as if more fully set forth at length herein.

57. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

58. That defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

59. By the reason of the foregoing, the plaintiff, HENRY XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF HENRY XAVIER**

60. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "59" inclusive with the same force and effect as if more fully set forth at length herein.

61. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, within the scope of their employment, without justification,

without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

62. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

63. That on January 8, 2017, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

64. By reason of the foregoing, plaintiff, HENRY XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF HENRY XAVIER**

65. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "64" inclusive with the same force and effect as if more fully set forth at length herein.

66. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the

plaintiff, HENRY XAVIER, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

67. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, HENRY XAVIER, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

68. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

69. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

70. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

71. That the defendant's actions were not privileged or immune.

72. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON

and JOHN DOES – Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

73. By the reason of the foregoing, the plaintiff, HENRY XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
ON BEHALF OF HENRY XAVIER**

74. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "73" inclusive with the same force and effect as if more fully set forth at length herein.

75. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

76. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, HENRY XAVIER.

77. That as a result of said intentional and negligent acts, the plaintiff, HENRY XAVIER, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

78. By reason of the foregoing, the plaintiff, HENRY XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR PUNITIVE
DAMAGES ON BEHALF OF HENRY XAVIER**

79. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "78" inclusive with the same force and effect as if more fully set forth at length herein.

80. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

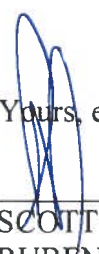
81. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JUSTIN HENDERSON and JOHN DOES – Police Officers as yet unidentified, herein-above alleged.

82. By the reason of the foregoing, the plaintiff, HENRY XAVIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, JEREMIE C. XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action; plaintiff, JEREMIE C. XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action; plaintiff, JEREMIE C. XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action; plaintiff, JEREMIE C. XAVIER demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action; plaintiff, JEREMIE C. XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action; plaintiff, HENRY XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action; plaintiff, HENRY XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh Cause of Action; plaintiff, HENRY

XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Eighth Cause of Action; plaintiff, HENRY XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Ninth Cause of Action; plaintiff, HENRY XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Tenth Cause of Action; plaintiff, HENRY XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Eleventh Cause of Action; plaintiff, HENRY XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Twelfth Cause of Action; plaintiff, HENRY XAVIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Thirteenth Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
October 24, 2017


Yours, etc.,

SCOTT RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

ATTORNEY'S VERIFICATION

SCOTT RYNECKI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, attorneys of record for Plaintiff, in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
November 7, 2017



SCOTT RYNECKI